

THIRD SEMESTER		
Law-523: Jurisprudence		(PAPER – I)

Unit – I

1. Definition, Meaning, Utility and Scope of Jurisprudence.
2. Relationship between ‘Law’ and ‘Morality’.

Unit – II

1. The Schools of Law and their application to the Indian Legal System:
 - (i) Analytical School
 - (ii) Historical School
 - (iii) Philosophical School
 - (iv) Sociological School
 - (v) Realist School
 - (vi) Kelson’s pure theory of Law

Unit – III

1. Sources of Law:
 - (i) Custom
 - (ii) Judicial Precedent
 - (iii) Legislation

Unit – IV

1. Concepts of Law: (a) Ownership (b) Possessions (c) Rights and Duties (d) Personalities
2. Theories of Punishment

Law-524: Property Law, Transfer of Property Act 1882		(PAPER – II)
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Unit – I

1. Definitions: Immovable Property, Notice, Attached to the earth, Actionable Claims.
2. Transfer of property: Definition and Meaning.
3. Non-Transferable Properties.
4. Transfer for benefit of an Unborn Person
5. Rule against Perpetuity
6. Rule against Accumulation.

Unit – II

1. Vested and Contingent Interests.
2. Conditional Transfer and its kinds.
3. Doctrine of Election.
4. Transfer of Ostensible Owners including Benami Transaction (Prohibition) Acts.
5. Feeding the Grant by Estoppels.
6. Fraudulent Transfer
7. Doctrine of Lis-Pendens
8. Doctrine of Part Performance

Unit – III

Specific Transfers:

1. SALE: Definition, Essentials, Rights and Duties of Seller and Buyer, Difference between Sale and contract for sale, Difference between Sale and Exchange.
2. Mortgage: Definition, Kinds, Redemption, Foreclosure , Marshalling and contribution, Difference between Mortgage and Charge.

Unit – IV

1. Lease: Definition, Essentials, Termination of Lease, Relief against Forfeiture.
2. Exchange: Definition, Essentials, Rights and liabilities of parties
3. Gift: Definition, Essentials Revocation and suspension of gift, Onerous Gift, Universal Donee.
4. Transfer of Actionable claims: Transfer, notice, liability and incapacity (section 130-136).

Law-525: Labour Law		(PAPER – III)
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Labour Law (Social Security Legislation)

UNIT – I

1. Labour in the ancient society & in the Middle Ages.
2. Conditions of Labour in the beginning of Industrialization.
3. Causes for exploitation of Labour in early days.

UNIT – II

1. Emergence of Concept of Social Justice and Social Security.
2. Role of I.L.O. in promoting enactment of Social Security Legislation in India.

UNIT – III

1. Employees Compensation Act, 1923

Definition: Dependent, Total disablement, Partial Disablement, workmen.

2. Employer's Liability for Compensation:

- (i) Accident arising out of & in the course of employment
- (ii) Notional extension of employer's premises.
- (iii) Liability of employers for occupational diseases.
- (iv) Defenses available to employer against the claims of compensation.
- (v) Contracting

3. Amount of Compensation.

4. Distribution of Compensation.

UNIT – IV

1. The Employees Provident Fund and Miscellaneous Provisions Act, 1952:

- (i) Object and application of the Act (ii) Definitions: Basic Wages, Factory, Employer, Employee
- (iii) Priority of payment of Contribution & Protection against attachment (iv) Inspector: Appointment, Powers & Functions

Law-526: Penology and Victimology		(PAPER –I V)
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Unit – I

1. Meaning, Aim, Scope and Relevance of Penology.
2. Theories of Punishment
3. Kinds of Punishment with Special Reference to capital Punishment

Unit – III

1. Preventive and corrective systems: (i) Police System (ii) Prison System

Unit – III

1. Alternatives to Punishment: (i) Probations (ii) Parole.
2. Juvenile delinquency: Control Measures with special reference to Juvenile Justice (Care and Protection) Act, 2015

Unit – IV

1. Recidivism and its Control Measures.
2. Meaning and Importance of Victimology
3. Recognition and Development of Victims Rights
4. Judicial Attitude towards rights of Victims
5. Legislative Measures for compensation to the Victims of Crime
6. Rights of Offenders vis-à-vis rights of victims an appraisal.

Law-527: Equity Trust and Easement Act		(PAPER – V)
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Unit – I

Equity:

1. Origin and growth of equity in England.
 - (i) Fusion of Common Law and Equity Jurisdiction.
2. Position of Equity under Indian legal system.
3. Maxims: (i) Equity will not suffer a wrong to be without a remedy. (ii) Equity follows the law. (iii) Where equities are equal, the law shall prevail. (iv) Where equities are equal, the first in time shall prevail. (v) He who seeks equity must do equity. (vi) He who comes to equity must come with clean hands. (vii) Delay defects equity. (viii) Equality is equity. (ix) Equity looks to the intent, rather than to form. (x) Equity acts in personam

Unit – II

Trust:

1. Nature and definition of Trust.
 - (i) Kinds of Trust (ii) Creation of Trusts
2. Charitable Trusts and their distinction with private trusts
 - (i) Rights, Duties, Powers and Liabilities of Trustees
 - (ii) Rights and Liabilities of Beneficiaries
 - (iii) Extinction of Trust

Unit – III

Easement:

1. Definition, Nature and Kinds of Easement.
 - (i) Easement of necessity and quasi easement.
2. Acquisition of prescription and customary easements.

Unit – IV

Licence:

1. Definition
2. Essentials
3. Difference between Licence, Easement and Lease
4. Revocation
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Law-528: Right to Information		(PAPER – VI)
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UNIT – I

1. RTI – Jurisprudential Aspects: Concepts of Freedom, Justice and Legal Rights.
2. Right to Information (i) A General overview: (a) From Stone Age to the Age of Information (b) RTI and International Covenants (c) RTI in other countries: UK, USA, European Union and others.
3. Constitutional provision.
4. Significance of RTI in democracy, Good governance & RTI.

UNIT – II

1. RTI Act, 2005: Salient Features: preliminary; RTI and Public Authorities; Central Information Commission; State Information Commission; Powers and Functions of ICs; Appeals and Penalties; and Miscellaneous Provisions. (Including the RTI Amendment, 2019.)

UNIT – III

1. RTI and Judicial Activism: Judicial Activism, RTI and HCs, RTI and SC, and RTI v. Judiciary.
2. RTI and other Laws (Only Sections Relevant to RTI): IT Act, 2000; Contempt of Courts Act, 1971; and Acts related to IP, The Bharatiya Nagrik Suraksha Sanhita Act, 2023

UNIT – IV

1. Whistle Blowers Protection Act, 2014.
2. RTI – Emerging Trends: Media and RTI;
3. Official Secrets Act, 1923, Atomic Energy Act 1962 & RTI

Law-529: Offences Against Child and Juvenile Offence.	:	PAPER – VII
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Unit – I

1. Rights of Child under Indian Constitution: Under fundamental rights (articles 21, 23 and 24 and directive principles of state policy [article 39 (e) and (f)].
2. **Rights of Child (i) – A Global Perspective:** (a) UN Declaration on the Rights of the Child (1959), UN Convention on the Rights of the Child (1989) (b) Cape Town Principles (1997) and Paris Commitments (2007). (c) ILO and the Rights of Child – Article 22 of ILO Constitution; Article 11(1) of the C29 Forced Labor Convention, 1930;

Unit – II

1. **Offences against Child, (i) Provisions of BNS 2023:** (a) Kidnapping, abduction and Begging (SS. 137-142) (b) Prostitution (SS. 98, 99) (c) Foeticide and infanticide (SS. 91-94)

Unit – III

1. **Crime against the Child, (i) Legislative efforts in India:** (a) Child Labour (Prohibition and Regulation) Act, 1986 (b) Prohibition of Child Marriage Act, 2006 (c) Child Prostitution and Immoral Traffic Act, 1956
2. **The Protection of Children from Sexual Offences Act, 2012.**
Object and meaning of POCSO Act, Sexual offences against children and punishment, Types of sexual offences, Using child for Pornographic purposes and punishment thereof, Abetment and attempt to commit an offence, Procedure for Reporting of Cases, Procedure For Recording Statement of the Child, Special Courts- Procedure and Powers of Special Courts and Recording of Evidence.

Unit – IV

1. **Juvenile Delinquency in India:** (i) Meaning and Causes, History of Juvenile Justice with Special Reference to India (ii) Juvenile Justice (Care and Protection of Children) Act, 2015 (with latest amendments): Definition of Juvenile, Juveniles in Conflict with Law, Neglected Children, Special Procedure Under the Act for Juvenile Justice.